

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1022

Introduced by Murman, 38; Andersen, 49; Ballard, 21; Clements, 2; Juarez, 5; Kauth, 31; Lippincott, 34; Lonowski, 33; Meyer, 17; Storer, 43.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to education; to amend sections 79-807,
- 2 79-808, 79-813, and 79-8,145.01, Reissue Revised Statutes of
- 3 Nebraska, and section 79-810, Revised Statutes Supplement, 2025; to
- 4 eliminate definitions; to eliminate the human relations training
- 5 requirement for obtaining a certificate or permit to teach, provide
- 6 special services, or administer; to harmonize provisions; and to
- 7 repeal the original sections.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 79-807, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 79-807 For purposes of sections 79-806 to 79-815, unless the context
4 otherwise requires:

5 (1) Board means the State Board of Education;

6 (2) Certificate means an authorization issued by the commissioner to
7 an individual who meets the qualifications to engage in teaching,
8 providing special services, or administering in prekindergarten through
9 grade twelve in the elementary and secondary schools in this state;

10 (3) Commissioner means the Commissioner of Education;

11 (4) Department means the State Department of Education;

12 ~~(5) Human relations training means course work or employment~~
13 ~~experiences that lead to (a) an awareness and understanding of the~~
14 ~~values, lifestyles, contributions, and history of a pluralistic society,~~
15 ~~(b) the ability to recognize and deal with dehumanizing biases,~~
16 ~~including, but not limited to, sexism, racism, prejudice, and~~
17 ~~discrimination, and an awareness of the impact such biases have on~~
18 ~~interpersonal relations, (c) the ability to translate knowledge of human~~
19 ~~relations into attitudes, skills, and techniques which result in~~
20 ~~favorable experiences for students, (d) the ability to recognize the ways~~
21 ~~in which dehumanizing biases may be reflected in instructional materials,~~
22 ~~(e) respect for human dignity and individual rights, and (f) the ability~~
23 ~~to relate effectively to other individuals and to groups in a pluralistic~~
24 ~~society other than the applicant's own;~~

25 (5) ~~(6)~~ Special education training means course work or employment
26 experiences that provide an individual with the knowledge of (a) the
27 exceptional needs of the disabilities defined under the Special Education
28 Act, (b) the major characteristics of each disability in order to
29 recognize its existence in children, (c) the various alternatives for
30 providing the least restrictive environment for children with
31 disabilities, (d) methods of teaching children with disabilities in the

1 regular classroom, and (e) prereferral alternatives, referral systems,
2 multidisciplinary team responsibilities, the individualized education
3 program process, and the placement process;

4 (6) ~~(7)~~ Special services means supportive services provided to
5 students that do not primarily involve teaching, including, but not
6 limited to, (a) audiology, psychology, and physical or occupational
7 therapy, (b) the coaching of extracurricular activities, and (c) subject
8 areas for which endorsement programs are not offered by a standard
9 institution of higher education; and

10 (7) ~~(8)~~ Standard institution of higher education means any college
11 or university, the teacher education programs of which are fully approved
12 by the board or approved in another state pursuant to standards which are
13 comparable and equivalent to those set by the board.

14 **Sec. 2.** Section 79-808, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 79-808 (1) The board shall establish, adopt, and promulgate
17 appropriate rules, regulations, and procedures governing the issuance,
18 renewal, conversion, suspension, and revocation of certificates and
19 permits to teach, provide special services, and administer based upon (a)
20 earned college credit in humanities, social and natural sciences,
21 mathematics, or career and technical education, (b) earned college
22 credit, or its equivalent in professional education, for particular
23 teaching, special services, or administrative assignments, (c) criminal
24 history record information if the applicant has not been a continuous
25 Nebraska resident for five years immediately preceding application for
26 the first issuance of a certificate, (d) ~~human relations training,~~ (e)
27 successful teaching, administration, or provision of special services,
28 and (e) ~~(f)~~ moral, mental, and physical fitness for teaching, all in
29 accordance with sound educational practices. Such rules, regulations, and
30 procedures shall also provide for endorsement requirements to indicate
31 areas of specialization on such certificates and permits. Such rules and

1 regulations shall not require any test of basic skills.

2 ~~(2) The board may issue a temporary certificate, valid for a period~~
3 ~~not to exceed two years, to any applicant for certification who has not~~
4 ~~completed the human relations training requirement.~~

5 (2) ~~(3)~~ Members of any advisory committee established by the board
6 to assist the board in teacher education and certification matters shall
7 be reimbursed for expenses as provided in sections 81-1174 to 81-1177.
8 Each school district which has an employee who serves as a member of such
9 committee and which is required to hire a person to replace such member
10 during the member's attendance at meetings or activities of the committee
11 or any subcommittee thereof shall be reimbursed from the Certification
12 Fund for the expense it incurs from hiring a replacement. School
13 districts may excuse employees who serve on such advisory committees from
14 certain duties which conflict with any advisory committee duties.

15 **Sec. 3.** Section 79-810, Revised Statutes Supplement, 2025, is
16 amended to read:

17 79-810 (1) Certificates and permits shall be issued by the
18 commissioner upon application on forms prescribed and provided by him or
19 her which shall include the applicant's social security number.

20 (2) Each certificate or permit issued by the commissioner shall
21 indicate the area of authorization to teach, provide special services, or
22 administer and any areas of endorsement for which the holder qualifies.
23 During the term of any certificate or permit issued by the commissioner,
24 additional endorsements may be made on the certificate or permit if the
25 holder submits an application, meets the requirements for issuance of the
26 additional endorsements, and pays a nonrefundable fee as set by the
27 commissioner, not to exceed fifty-five dollars.

28 (3) The department shall make available on a portal on the
29 department's website the option or ability for an individual with a
30 certificate or permit to apply for an endorsement. Such portal shall also
31 include a list of courses that an individual with a certificate or permit

1 may take to add an endorsement to such certificate or permit. The
2 commissioner shall allow an individual with a certificate or permit the
3 following alternative methods of obtaining an endorsement:

4 (a) Taking a subject-specific content examination in designated
5 endorsement areas and indicating such subject as an endorsement on such
6 individual's certificate or permit based solely on passage of the
7 examination; or

8 (b) Completing an approved program of equivalent professional
9 education in a designated endorsement area that is provided by an
10 accredited public school.

11 (4) The Certification Fund is created. Any fee received by the
12 department under sections 79-806 to 79-815 shall be remitted to the State
13 Treasurer for credit to the fund. The fund shall be used by the
14 department in paying the costs of certifying educators pursuant to such
15 sections and to carry out subsection (2) ~~(3)~~ of section 79-808. For
16 issuance of a certificate or permit valid in all schools, the
17 nonrefundable fee shall be set by the commissioner, not to exceed sixty-
18 five dollars. Transfers may be made from the Certification Fund to the
19 Education Future Fund at the direction of the Legislature. Any money in
20 the Certification Fund available for investment shall be invested by the
21 state investment officer pursuant to the Nebraska Capital Expansion Act
22 and the Nebraska State Funds Investment Act.

23 **Sec. 4.** Section 79-813, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 79-813 (1)(a) The board shall authorize the issuance of a
26 certificate or permit to any applicant for such certificate or permit
27 who:

28 (i) Is a military spouse or has been offered employment to teach,
29 administer, or provide special services by an accredited school district
30 in Nebraska or an approved and accredited private, denominational, or
31 parochial school in Nebraska;

1 (ii) Holds a valid certificate or permit, in force in another state
2 at the time of application, to teach, administer, or provide special
3 services;

4 (iii) Has held such certificate or permit for at least one year;

5 (iv) Is in good standing in all states in which the applicant holds
6 a certificate or permit to teach, administer, or provide special
7 services;

8 (v) Does not have any pending investigation or complaint against any
9 such certificate or permit;

10 (vi) Meets all residency and background check requirements otherwise
11 required for a Nebraska certificate or permit; and

12 (vii) Pays any applicable fees.

13 (b) The commissioner shall verify that the applicant for a
14 certificate or permit under this subsection meets the requirements of
15 subdivisions (a)(iv) and (v) of this subsection. ~~Such applicant shall not~~
16 ~~be required to meet the human relations training requirement under~~
17 ~~section 79-808 to obtain such certification or permit.~~ Such certificate
18 or permit shall be valid for at least three years and shall include the
19 same or similar endorsements to teach in all subject areas for which the
20 applicant had been certified to teach in such other state if a similar
21 endorsement is offered in Nebraska.

22 (c) A preliminary permit shall be issued to an applicant upon
23 submission of the application, payment of the applicable fees, and the
24 successful completion of the criminal history record information check as
25 provided in section 79-814.01. The preliminary permit shall remain in
26 force until the commissioner completes the review of all requirements in
27 subdivision (1)(a) of this section and either issues a certificate or
28 permit or notifies the applicant of the reason such certificate or permit
29 cannot be issued.

30 (d) The board shall adopt and promulgate rules and regulations to
31 (i) expedite the processing of an application submitted under this

1 subsection by an applicant whose spouse is serving on active duty at the
2 time of such submission and (ii) specify the documentation necessary to
3 establish the applicant's status as a spouse of a person who is serving
4 on active duty at the time of such submission.

5 (e) For purposes of this subsection:

6 (i) Active duty means full-time duty status in the active uniformed
7 service of the United States, including members of the National Guard and
8 Reserve on active duty orders pursuant to 10 U.S.C. chapters 1209 and
9 1211; and

10 (ii) Military spouse has the same meaning as in section 38-118.01.

11 (2)(a) The board shall authorize the issuance of a certificate or
12 permit to any applicant for such certificate or permit who:

13 (i) Holds a valid certificate or permit to teach in force in another
14 state at the time of application;

15 (ii) Is in good standing in all states in which the applicant holds
16 a certificate or permit to teach;

17 (iii) Does not have any pending investigation or complaint against
18 any such certificate or permit;

19 (iv) Meets all residency and background check requirements otherwise
20 required for a Nebraska certificate or permit; and

21 (v) Pays any applicable fees.

22 (b) The commissioner shall verify that the applicant for a teaching
23 certificate or permit under this subsection meets the requirements of
24 subdivisions (2)(a)(ii) and (iii) of this section. ~~Such applicant shall~~
25 ~~not be required to meet the human relations training requirement under~~
26 ~~section 79-808 to obtain such certification or permit.~~ Such certificate
27 or permit shall include the same or similar endorsements to teach in all
28 subject areas for which the applicant had been certified to teach in such
29 other state if a similar endorsement is offered in Nebraska.

30 (c) A conditional permit shall be issued to an applicant upon
31 submission of the application, payment of the applicable fees, and the

1 successful completion of the criminal history record information check as
2 provided in section 79-814.01. The conditional permit shall remain in
3 force until the commissioner completes the review of all the requirements
4 of subdivision (2)(a) of this section and either issues a certificate or
5 permit to teach or notifies the applicant of the reason such certificate
6 or permit cannot be issued.

7 (d) The department shall make available on a portal on the
8 department's website the option or ability for individuals to apply for a
9 certificate to teach pursuant to this subsection.

10 (3) In addition to certificates and permits issued pursuant to
11 subsections (1) and (2) of this section, the board may authorize the
12 issuance of other certificates or permits to applicants who hold a valid
13 certificate or permit currently in force in another state if the
14 requirements for the certificate or permit held by the applicant are
15 comparable and equivalent to those required for a similar type of
16 certificate or permit issued under sections 79-806 to 79-815.

17 **Sec. 5.** Section 79-8,145.01, Reissue Revised Statutes of Nebraska,
18 is amended to read:

19 79-8,145.01 (1) In addition to certificates issued pursuant to
20 section 79-806 to 79-815, the Commissioner of Education shall, subject to
21 subsections (2) and (3) of this section, issue an alternative certificate
22 to teach on a full-time basis to any applicant who:

23 (a) Possesses a baccalaureate degree; and

24 (b) Has successfully completed an alternative teacher program
25 operated by an organization that satisfies the following criteria:

26 (i) The organization operates in at least five states;

27 (ii) The organization has operated an alternative teacher
28 certification program for at least ten years; and

29 (iii) The program requires candidates to pass a subject area
30 examination and a pedagogy examination to receive a documentation of
31 successful completion of such program.

1 (2) An alternative certificate issued by the Commissioner of
2 Education under this section only authorizes an individual to teach the
3 subject and educational levels for which the individual has successfully
4 completed an alternative teacher program.

5 (3) Issuance of an alternative certificate pursuant to this section
6 shall also be subject to any rules, regulations, or procedures
7 established pursuant to subdivisions (1)(c) and (e) ~~(f)~~ of section 79-808
8 and section 79-810.

9 (4) An individual who receives an alternative certificate pursuant
10 to this section shall:

11 (a) Participate in a school district clinical experience for one
12 semester in such individual's first semester of employment as a teacher
13 pursuant to this section; and

14 (b) Be subject to the same certification criteria as an individual
15 who completes a traditional teacher preparation program if converting the
16 alternative certificate to a standard certificate to teach.

17 **Sec. 6.** Original sections 79-807, 79-808, 79-813, and 79-8,145.01,
18 Reissue Revised Statutes of Nebraska, and section 79-810, Revised
19 Statutes Supplement, 2025, are repealed.